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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION
ANTICIPATORY BAIL APPLICATION NO. 2354 OF 2023

Rakesh Vilas Renuse

...Applicant

Versus

The State of Maharashtra

...Respondent

Ms. Juhi Kadu i/b Mr. Aniket Vagal, for the Applicant.

Mr. C.D. Mali, APP, for the Respondent-State.

Mr. Madhukar Tupsoundar, PSI, Sinhgad Police Station, present.

CORAM: MADHAV J. JAMDAR, J.

DATED : 20th September, 2025

PC:-

1. This matter was listed yesterday and this Court passed following order on 19th September 2025 :-

1. None for the Applicant.

2. To give one more opportunity to the Applicant, stand over to 20th September 2025. To be listed under the caption of "dismissal".

2. Today although the matter is listed under the caption for "Dismissal", Ms. Kadu, learned Advocate appears for the

Applicant and seeks time. She says that the learned Advocate who is to argue the matter is not available.

3. Mr. Mali, learned APP states that Mr. Madhukar Tupsoundar, PSI, Singhgad Police Station, Pune is present in the Court to give instructions for this matter, however, he is not aware of any details regarding the case, including whether the chargesheet is filed, the date on which the chargesheet is filed and particulars regarding antecedents.

4. The Hon'ble Supreme Court in the case of ***Anna Waman Bhalerao vs. State of Maharashtra***¹ has issued following directions :-

“17. In light of the foregoing discussion and the precedents cited, certain clear principles emerge. Applications concerning personal liberty cannot be kept pending for years while the applicants remain under a cloud of uncertainty. The consistent line of authority of this Court makes it abundantly clear that bail and

1 2025 SCC OnLine SC 1974

anticipatory applications must be decided expeditiously on their own merits, without relegating the parties to a state of indefinite pendency. Prolonged delay in disposal not only frustrates the object of Code of Criminal Procedure, but also amounts to a denial of justice, contrary to the constitutional ethos reflected in Articles 14 and 21.

18. We accordingly issue the following directions:

- a) High Courts shall ensure that applications for bail and anticipatory bail pending before them or before the subordinate courts under their jurisdiction are disposed of expeditiously, preferably within a period of two months from the date of filing, except in cases where delay is attributable to the parties themselves.*
- b) High Courts shall issue necessary administrative directions to subordinate courts to prioritise matters involving personal liberty and to avoid indefinite adjournments.*
- c) Investigating agencies are expected to conclude investigations in long-pending cases with promptitude so that neither the complainant nor the accused suffers prejudice on account of undue delay.*

d) Being the highest constitutional fora in the States, High Courts must devise suitable mechanisms and procedures to avoid accumulation of pending bail/anticipatory bail applications and ensure that the liberty of citizens is not left in abeyance. In particular, bail and anticipatory bail applications shall not be kept pending for long durations without passing orders either way, as such pendency directly impinges upon the fundamental right to liberty.”

(Emphasis added)

5. It is settled legal position that Article 14 and 21 of the Constitution of India clearly contemplates that Bail and Anticipatory Bail Applications shall be decided expeditiously. However, the conduct of learned Advocate of the Applicant as well as the assistance which is being rendered by the Investigating Machinery is set out hereinabove. Unless proper assistance is rendered to the Court by both the sides it will not be possible for the Courts to dispose of Bail Applications/Anticipatory Bail Applications expeditiously.

6. Accordingly, the Police Commissioner of Pune City is directed to remain present either personally or through V.C. The Police Commissioner is expected to take appropriate steps so that proper assistance will be rendered by the State of Maharashtra to the Court for disposal of the Bail Applications/ Anticipatory Bail Applications expeditiously.

7. The conduct of learned Advocate of the Applicant is totally unacceptable. Yesterday as he was absent, to give one more opportunity to the Applicant, the Anticipatory Bail Application is kept today under the caption of "Dismissal". Today, also the learned Advocate on record is absent and time is sought on his behalf. If the Advocates do not assist properly, it will not be possible for the Court to dispose of Bail Applications / Anticipatory Bail Applications expeditiously. All the learned Advocates are requested to assist the Court in proper manner for disposal of Bail Applications/Anticipatory Bail Applications expeditiously.

8. Stand over to 22nd September 2025 to be shown as “First on Board”.

[MADHAV J. JAMDAR, J.]